9:00 AM
Line 7
25-CIV-05547 TRIPATINDER CHOWDHRY VS. BRADLEY J. LUCAS, ET AL

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| TRIPATINDER CHOWDHRY | DAVID G. FINKELSTEIN |
| BRADLEY J. LUCAS | ELIZABETH M. PAPPY |

Defendants' (Amended) Demurrer to Plaintiff's First Amended Complaint

**TENTATIVE RULING:**

For the reasons stated below, Defendants Bradley Lucas and Melanie Lucas ("the Lucas defendants") demurrer to Plaintiff Tripatinder Chowdhry's ("Plaintiff" or "Mr. Chowdhry") Jan. 27, 2026 First Amended Complaint ("FAC") is SUSTAINED-in-part and OVERRULED-in-part. (Code Civ. Proc. § 430.10(c), (e).)

Defendants' Jan. 27, 2026 Request for Judicial Notice (RJN) is GRANTED. (Evid. Code § 452(c)-(d).) As to court-filed and recorded documents, the Court takes judicial notice of their contents and filing/recording dates, but does not take judicial notice of the truth of statements/allegations in the documents.

*Defective meet and confer.*

This Court previous found that the Lucas defendants failed to properly meet and confer before filing their previous demurrer back in 2025. (See Dec. 21, 2025 Minute Order.) Defendants once again have not complied with Code Civ. Proc. § 430.41.

The Jan. 27, 2026 declaration of defendants' counsel Rob Keitamo states that on Jan. 11, 2026, the attorneys exchanged a *draft* FAC, then spoke by phone about the draft FAC on Dec. 15, 2025, and that on Dec. 26, 2026, Plaintiff filed a FAC that differed from the version the attorneys had previously discussed on the telephone. On Jan. 7, 2026, defendants' counsel sent to Plaintiff's counsel an email stating that defendants intended to demur to the FAC "unless [Plaintiff's counsel] wished to meet and confer further." On Jan. 8, 2026, Plaintiff's counsel responded by email, stating there was nothing further to discuss …" (Jan. 27, 2026 Keitamo Decl., ¶¶ 3-7.)

The Keitamo declaration indicates that (1) the attorneys never spoke to each other regarding the version of the FAC that Plaintiff filed on Dec. 26, 2026; and (2) they never spoke about the demurrer after the FAC was actually filed. § 430.41 requires the attorneys to speak, or at least, to make a genuine attempt to speak to each other, and discuss the planned to demurrer to the pleading, *after* it is filed. The fact that the Dec. 26, 2026 FAC differed from the prior version (that was exchanged on Dec. 11) was even more reason that the attorneys should have spoken after the filing date. Merely exchanging emails (on Jan. 7-8) does not comply with § 430.41.

Further, § 430.41 states, in part:

> As part of the meet and confer process, the demurring party shall identify all of the specific causes of action that it believes are subject to demurrer and identify with legal support the basis of the deficiencies. The party who filed the complaint, … shall provide legal support for its position that the pleading is legally sufficient or, in the alternative, how the complaint, … could be amended to cure any legal insufficiency.

(§ 430.41(a)(1).) The Keitamo declaration provides no indication that, during the attorneys' Dec. 15 telephone discussion, defense counsel identified any legal support for the claimed deficiencies in the FAC, nor that Plaintiff's counsel identified "legal support for its position that the pleading is legally sufficient."

Additionally, based on the Keitamo declaration, it appears that during the attorneys' Dec. 15 telephone discussion, they only discussed the res judicata defense. But the demurrer to the FAC includes several arguments that have nothing to do with res judicata. It is unclear whether *any* of these other arguments were ever discussed by the attorneys.

Evidence has shown that when attorneys actually speak about the issues to be raised in a demurrer, and exchange their legal authority supporting their positions, the chances of them either resolving their dispute entirely, or narrowing it, improve significantly. When they don't do so, they often end up forcing the court to expend time and resources on matters that could have been resolved without court intervention.

In its discretion, the Court has decided to proceed to rule on the demurrer's merit, but the Court advises the parties to strictly comply with meet and confer requirements going forward, and that the Court may issue sanctions for future violations/non-compliance.

*Background.*

This case arises from a dispute between Plaintiff Chowdhry and the Lucas defendants over Mr. Chowdhry's claimed easement rights to a piece of land ("the Hermosa Avenue Segment") that lies between 655 Miramar Drive (which is owned by TEG Partners, LLC and leased by Chowdhry) and 681 Hermosa Avenue, which is owed by the Lucas defendants. The Hermosa Avenue Segment appears to lie on the border of Half Moon Bay and an unincorporated area of San Mateo County. Mr. Chowdhry owns property located at 18 Terrace Avenue, which is near, but does not adjoin, the Hermosa Avenue Segment. Mr. Chowdhry also allegedly leases part of the TEG Partners, LLC's property at 655 Miramar Drive, which adjoins the Hermosa Avenue Segment.

Mr. Chowdhry, TEG Partners, LLC, and a third individual previously sued the Lucas defendants' predecessor-in-interest, Erica Steiner, in a case entitled *Tripatinder Chowdhry, et al. v. Erica Steiner, et al.*, Case No. 18CIV01684 (the "Steiner Action"), which resulted in a 2020 judgment.

That 2020 judgment awarded plaintiffs Chowdhry and TEG an ingress/egress easement over the Hermosa Avenue Segment.

There is also a currently-pending lawsuit, captioned *TEG Partners, LLC v. Brad J. Lucas, et al.*, Case No. 23CIV02308 (the “TEG Action”), involving similar parties and claims, and involving the same disputed piece of land (the Hermosa Avenue Segment).

Mr. Chowdhry’s FAC in this case alleges that the Lucas defendants have obstructed/violated his ingress/egress easement rights as previously awarded in the Steiner litigation, and he seeks to establish, or seeks recognition of, claimed easements rights to use the Hermosa Avenue Segment in various ways, which he alleges are part and parcel, and reasonably included, with his right of ingress and egress.

Mr. Chowdhry’s FAC, filed Dec. 26, 2025, asserts the following causes of action:

1. Declaratory Relief - Easement by 1907 Subdivision Map;
2. Private Nuisance;
3. Public Nuisance;
4. Declaratory Relief – Easement by 2020 Judgment;
5. Quiet title-Prescriptive Easement.

The Lucas defendants demur to the First, Fourth, and Fifth Causes of Action, on several grounds.

*Legal standard.*

A demurrer is used to challenge defects that appear on the face of the pleading, or from matters outside the pleading that are judicially noticeable. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) A demurrer assumes that all facts pleaded in the complaint are true, no matter how improbable. (*Serrano v. Priest* (1971) 5 Cal. 3d 584, 591.) In ruling on a demurrer, the court construes the complaint liberally with a view of substantial justice between the parties. (Code Civ. Proc. Sect. 452; *Cameron v. Wernick* (1967) 251 Cal.App.2d 890.)

*First Cause of Action*

As to the First Cause of Action (“Declaratory Relief - Easement by 1907 Subdivision Map”, the demurrer is SUSTAINED, because this claim is barred by res judicata/claim preclusion.

The doctrine of claim preclusion prevents re-litigation of the same cause of action between the same parties or parties in privity where there has been a final judgment on the merits. (*Mycogen Corp. v. Monsanto Co.* (2002) 28 Cal.4th 888, 896–897.) Claim preclusion applies when: (1) the prior proceeding resulted in a final judgment on the merits; (2) the present action involves the same cause of action; and (3) the parties or their privies are the same in both actions. (*SLPR, L.L.C. v. San Diego Unified Port District* (2020) 49 Cal.App.5th 284, 298.)

Claim preclusion applies not only to issues actually litigated, but also to matters that could have been litigated in the prior proceeding. (*Mycogen Corp., supra*, 28 Cal.4th at p. 897.) Thus, the doctrine prohibits claim splitting and requires that all claims based on the same primary right be litigated in a single action.

A judgment entered pursuant to stipulation constitutes a final judgment on the merits for purposes of claim preclusion. (*De Weese v. Unick* (1980) 102 Cal.App.3d 100, 105; *Louie v. BFS Retail & Commercial Operations, LLC* (2009) 178 Cal.App.4th 1544, 1555.)

In the prior lawsuit captioned *Singh et al. v. Erica Steiner et al*., San Mateo Superior Court Case No. 18-CIV-01684 ("Steiner Litigation") (RJN, Ex. A), Mr. Chowdhry, Tejinder Singh, and TEG Partners, LLC sued the Lucas defendants' predecessor-in-interest Erica Steiner (Steiner appears to be the previous owner of the Lucas' defendants' parcel). The Steiner case, as with the present case, involved a dispute over Mr. Chowdhry's and TEG Partners, Inc.'s claimed easement rights over the same disputed piece of land—the "Hermosa Avenue Segment." In the Steiner case, Mr. Chowdhry and TEG were represented by the same law, Finkelstein & Fujii LLP, that represents Mr. Chowdhry in this case.

Mr. Chowdhry's and TEG's Sept. 13, 2018 Second Amended Complaint in the Steiner case asserted causes of action for (1) declaratory relief; (2) quiet title; (3) prescriptive easement; and (4) utility easement. The plaintiffs in the Steiner case dismissed their Third and Fourth Causes of Action. Mr. Chowdhry and TEG Partners, LLC ultimately prevailed on their First and Second Causes of Action (declaratory relief and quiet title) when the Court entered a default judgment on those two claims. The Steiner court entered a 2020 judgment declaring that Mr. Chowdhry and TEG Partners, LLC have easement rights over the "Hermosa Avenue Segment" for ingress and egress. (Jan. 23, 2020 Judgment in Case No. 18-CIV-01684.)

In the Steiner lawsuit, Mr. Chowdhry and TEG Partners, LLC claimed, in part, that based on Mr. Chowdhry's ownership of 18 Terrace Avenue, Half Moon Bay, and based on Mr. Chowdhry's ownership (at that time) of TEG Partners, LLC, which in turn owns property at 655 Miramar Drive, which adjoins the Hermosa Avenue Segment, Mr. Chowdhry and TEG Partners, LLC both have ingress/egress easements rights over the Hermosa Avenue Segment.

In the Steiner case, Mr. Chowdhry and TEG Partners, LLC based their easement claims/arguments, in part, on a 1907 subdivision map. Mr. Chowdhry's and TEG Partners, LLC's Second Amended Complaint alleged the following:

> 14. In 1907, HALF MOON BAY published a Map of Subdivision of Block 10 Miramar Terrace, that includes Hermosa Avenue, a section of which later evolved into a paper street. (See a copy of the 1907 Subdivision attached as Exhibit "D.") The Map includes the following language, wherein HALF MOON BAY protects the rights of abutting property owners for ingress and egress on the streets listed in the Map: "[i]t (Half Moon Bay Development Co.) does not intend by the making, mapping and platting of said lands as shown hereon to dedicate to the public or to public use any of the streets, avenues or highways delineated on this map, and it does hereby expressly declare that none of the

> streets, avenues or highways designated and shown hereon are in any manner, or for any purpose dedicated to the public or to public use, all purchasers of any block or lot or other parcel of land shown hereon shall have such right of way for ingress or egress over said streets, avenues and highways as may be necessary to the full enjoyment of the lands so purchased subject to such reasonable restrictions as said corporation owner may deem admissible." (Emphasis added.)
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> 15. Therefore, while HALF MOON BAY did not publicly dedicate any of the "streets, avenues or highways" to the public, it did ensure that "all purchasers of any block or lot or other parcel of land. . .have such right of way for ingress or egress over said streets." Based on the MAP, PLAINTIFFS have a right of ingress and egress based on ownership of both their PRIMARY and SECONDARY PROPERTY, and not only as abutting property owners of the SECONDARY PROPERTY which abuts the STEINER PARCEL on the paper street located within this subdivision.

Mr. Chowdhry's First Cause of Action in the present case, for "Declaratory Relief - Easement by 1907 Subdivision Map," is therefore barred by res judicata. There is no dispute here that the Steiner case resulted in a final judgment on the merits. Nor does Mr. Chowdhry appear to dispute that that Steiner case involved the "same parties or parties in privity," because the Lucas defendants purchased their property from Erica Steiner. As such, the elements of res judicata are met. Mr. Chowdhry's current claim for "Declaratory Relief - Easement by 1907 Subdivision Map" not only could have been litigated in the Steiner case, it was litigated in that case, and it was adjudicated.

*Fourth Cause of Action*

As to the Fourth Cause of Action ("Declaratory Relief – Easement by 2020 Judgment"), the demurrer is OVERRULED. Unlike the First Cause of Action, this cause of action, at least in part, does not seek to establish easement rights, but instead, it seeks clarification regarding the scope of Chowdhry's existing rights in light of new alleged acts of interference with his easement rights by the Lucas defendants.

The FAC alleges that the Lucas defendants have placed barriers and otherwise obstructed Mr. Chowdhry's (and emergency vehicles') access over the easement. (FAC, ¶ 78.) Among other things, this cause of action seeks a declaration/determination that Mr. Chowdhry has a "vehicular right of ingress and egress" to the Hermosa Avenue Segment (¶ 79), "the right to improve and pave [it] for safe and reasonable access … as well as for fire safety and access to ingress and egress in the event of a fire or other natural disaster…" (¶ 80.) Mr. Chowdhry also claims entitlement to walk and jog on the Hermosa Avenue Segment, to drive and park vehicles on it, to pave it, and to install utilities on it. (FAC, ¶ 38.) The Lucas defendants argue that such uses improperly go beyond "ingress and egress," and therefore are not permitted. (See Dem. at 4 ["Chowdhry seeks to expand his easement rights to include activities other than ingress and egress."])

The Steiner judgment itself does not define or explain the scope of Mr. Chowdhry's granted ingress and egress rights, and the parties disagree on the meaning/reasonable scope of the term "ingress and egress." (See, e.g., Dem. at 5 [the Lucas defendants arguing: "There is no reasonable reading of the Hermosa Judgment to include paving of a roadway, the installation of utilities, or the right to stand or walk around …"]) Defendants also appear to disagree that the right of ingress and egress permits Chowdhry to come and go in a vehicle. See Reply at 3:

> Access for motor vehicles is not mentioned in the Hermosa [Steiner] Judgment. (FAC, Ex. 7.) There is no reference granting Chowdhry any right to be present on the Lucases' family property for reasons other than ingress and egress. (Id.) There is no viable argument that such an expansive easement right can be inferred from the text of the Hermosa [Steiner] Judgment.

(Reply at 3.)

A demurrer is not the proper vehicle to eliminate portions of a cause of action. Therefore, the fact that some of Mr. Chowdhry's claimed easements rights may be barred by res judicata, or may be otherwise impermissible, does not necessarily defeat the Fourth Cause of Action on demurrer, because a demurrer does not lie to attack only parts of an otherwise sufficient cause of action. Even if the Court were to conclude, for example, that Mr. Chowdhry's ingress and egress rights do not permit him to install utilities on the roadway, or that such a request is barred by res judicata, that requested relief does not render the entire cause of action subject to demurrer. Instead, the cause of action survives demurrer so long as it alleges an actual controversy regarding at least one issue that is appropriate for judicial relief.

At least in part, the Fourth Cause of Action does not seek to relitigate the issues raised, or that could have been raised, in the Steiner case. At least in part, it seeks clarity via declaratory relief, as to the scope of Mr. Chowdhry's "ingress and egress" easement rights, in light of the new alleged interference with his easement rights by the Lucas defendants. In part, this claim concerns post-judgment conduct, and a dispute regarding the reasonable scope of an established easement, not the existence of the ingress/egress easement itself. Thus, the demurrer to this cause of action is not well taken.

Citing to the pending case of *TEG Partners, LLC v. Brad J. Lucas, et al.*, 23CIV02308, defendants also argue that the First, Fourth, and Fifth Causes of Action are subject to demurrer because "[t]here is another action pending between the same parties on the same cause of action." (Code Civ. Proc. § 430.10(c).) Defendants do not show that these cases involve the same parties.

Chowdhry is not a named party to the TEG case (23CIV02308), and TEG is not a named party in the present case (25CIV05547). LLCs are generally considered separate entities, separate and apart from their members/principals. Defendants cite no authority stating/holding that, for purposes of applying Code Civ. Proc. § 430.10(c), an LLC's member(s) or principals and the LLC itself can be treated as one and the same. And even an LLC's member/owner can be treated as the same "party" as the LLC, or in "privity" with the LLC, defendants cite to no evidence subject to judicial notice establishing that Mr. Chowdhry currently holds any interest in TEG

Partners, LLC. In fact, defendants appear to concede, or at least suggest, that Mr. Chowdhry has no current ownership interest in TEG Partners, LLC. (See Dem. at 11 ["Chowdhry *was* a part owner of TEG during the Steiner Litigation …. TEG—an entity in which Chowdhry *once held* an ownership interest …"]) Because defendant have not shown that the two cases involve "the same parties," defendants have not shown that § 430.10(c) bars any of the claims asserted in this case.

Accordingly, the demurrer to the Fourth Cause of Action is overruled.

*Fifth Cause of Action*

As to the Fifth Cause of Action ("Quiet Title - Prescriptive Easement over Hermosa Avenue Segment"), the demurrer is OVERRULED. Plaintiff's FAC alleges, in the alternative, that in the event this Court finds that Mr. Chowdhry's existing ingress/egress easement does not authorize him to use the roadway for walking and hiking, he nonetheless has obtained rights to walk and hike on the Hermosa Avenue Segment via prescriptive easement through adverse use, in the time period *after* issuance of the 2020 Steiner judgment. Litigants are generally permitted to plead in the alternative in this manner, and defendants cite no authority suggesting that such alternative pleading is not permissible.

Defendants' res judicata argument lacks merit, because this alternative prescriptive easement claim appears to be based on alleged adverse use during the past five plus years—in other words, in the time period *after* issuance of the 2020 Steiner judgment. See CACI 4901 [Prescriptive Easement], stating:

> [*plaintiff*] claims that [he] is entitled to a nonexclusive use of [*defendant*]'s property for the purpose of [*describe use*]. This right is called a prescriptive easement. In order to establish a prescriptive easement, [*plaintiff*] must prove that for a period of five years all of the following were true:
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> 1. That [*plaintiff*] has been using [*defendant*]'s property for the purpose of [*describe use*];
> 2. That [*plaintiff*]'s use of the property was continuous and uninterrupted;
> 3. That [*plaintiff*]'s use of [*defendant*]'s property was open and easily observable, or was under circumstances that would give reasonable notice to [*name of defendant*]; and
> 4. That [*plaintiff*] did not have [*defendant*]'s permission to use the land.

The FAC alleges that Mr. Chowdhry openly and continuously used the Hermosa Avenue Segment for walking and hiking over a period exceeding five years, continuing up to the filing of the present lawsuit. Because this claim is based on actions after issuance of the Steiner judgment, it was not and could not have been litigated in the Steiner case.

Defendants also argue that Mr. Chowdhry could not have obtained any additional rights to the Hermosa Avenue Segment by prescriptive easement after entry of the 2020 Steiner judgment, because he already had an ingress/egress easement. But the holder of an ingress/egress easement presumably can acquire additional prescriptive rights beyond the scope of an existing easement, provided the elements of prescription are independently established. Here, Mr. Chowdhry alleges that if the Court determines/declares that the ingress/egress easement is narrower in scope and does not grant him the right to "walk and hike on the Hermosa Avenue Segment," then alternatively, he acquired the right to do so by walking and hiking on the Hermosa Avenue Segment, in an open and hostile manner, after issuance of the Steiner judgment. Defendants cite no authority precluding Chowdhry from acquiring additional rights through prescription after the issuance of the 2020 Steiner judgment.

Lastly, defendants argue that the Fifth Cause of Action (prescriptive easement) is subject to demurrer for failure to join TEG Partners, LLC, which defendants argue is an indispensable party to this claim. Code Civ. Proc. § 762.010, which applies to quiet title claims, states:

> The plaintiff shall name as defendants in the action the persons having adverse claims to the title of the plaintiff against which a determination is sought.

Defendants have not shown/explained how Mr. Chowdhry and TEG Partners, LLC have adverse interests with Mr. Chowdhry's claimed right to "walk and hike on the Hermosa Avenue Segment," nor it is apparent how the grant of such rights would negatively/adversely impact TEG Partners, LLC.

*Leave to amend.*

The Court generally exercises a liberal stance with respect to permitting amendments to pleadings. Here, however, the First Cause of Action is plainly barred by res judicata, and Plaintiffs have not adequately explained how any amendment(s) would or could change that result. Further, given that the Fourth Cause of Action is surviving the demurrer, it is not clear to the Court that the First Cause of Action provides Plaintiff with any benefit. Accordingly, as to the First Cause of Action, the demurrer is sustained without leave to amend.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to CRC Rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the CRC. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order **REPEATING VERBATIM** the tentative ruling" (emphasis added). The order should be filed or e-filed only, do not email or mail a hard copy to the Court.

9:00 AM
Line 8

26-CIV-00278 SHANNON PEKARY VS. PALO ALTO PARK MUTUAL WATER COMPANY

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| SHANNON PEKARY | PRO SE |
| PALO ALTO PARK MUTUAL WATER COMPANY | TERANCE D. ORME |

Petition for Writ of Mandate

**TENTATIVE RULING:**

No tentative ruling as this is an evidentiary hearing. Parties to appear.